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Registered with the  PROPERTY PRACTITIONERS
REGULATORY AUTHORITY

LEASE AGREEMENT

FOR

SAN-BREPARK 6



TAKING THE BATTLE OUT OF
LETTING & SELLING
SINCE 2001

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LEASE AGREEMENT

1. PARTIES

This agreement is made between

DIE HUBERT TRUST

IT:1440/98

HERE IN REPRESENTED BY NICO TROMP BADENHORST, ID No:6610315192088 IN HIS CAPACITY AS TRUSTEE OF THE HUBERT TRUST , ACCORDING A LETTER OF AUTHORITY BY THE MASTER OF THE HIGH COURT.

Of

P/A HJA DE WAAL

17 VOLKSPELE DRIVE

PELLISSIER

BLOEMFONTEIN

9301

Herein represented by PROPERLET as the agent

(Hereafter referred to as the LESSOR)

AND

LECHESA MACDONALD MANABA

ID No:8509085860080

OF

6 SAN-BREPARK 6

JAN FISKAALSTREET

BLOEMFONTEIN

9301

(Hereafter referred to as the LESSEE)

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2. DEFINITIONS

- 2.1 In this lease agreement, unless the context indicates the contrary,
- 2.2 The singular includes the plural and vice versa;
- 2.3 Pronouns of any gender include the corresponding pronouns of the other gender;
- 2.4 Any reference of natural persons also includes legal entities and vice versa
- 2.5 And the following words have the following meanings:
 - 2.5.1 The property: 6 SAN-BREPARK
JAN FISKAALSTREET
PELLISSIER
 - 2.5.2 The dwelling: means the dwelling on the Property;
 - 2.5.3 The fittings: means all the installations and apparatus on the property and without detracting from the general scope of the aforementioned include keys, locks, windows, toilets, washbasins, taps, electrical and other equipment.
 - 2.5.4 The ACT: the Rental Housing Act, 1999 (Act No. 50 of 1999).
 - 2.5.5 The LESSEE also includes an occupant.

3. LETTING AND HIRING

The LESSOR lets and the LESSEE hires the property on the terms of this lease subject to the clauses included in this agreement.

4. LEASE PERIOD

- 4.1 This lease is for a period of 12 (TWELVE) months and shall come into operation on **01 OCTOBER 2025** and shall subsist until **30 SEPTEMBER 2026**.
- 4.2 The parties understand in accordance with clause 4.1, this contract cannot be terminated before **30 SEPTEMBER 2026**. Should the contract be terminated for what so ever reason, before the end of the term, the party who is responsible for ending the contract shall be liable for payment of the full liability under the contract, If it is the LESSEE who terminates the contract, the LESSEE shall be liable for the payment of the rental until the end of the term of the contract. Should however a new LESSEE be found before the end of the term of this contract, the LESSEE shall not be liable for the full payment of the rental, but shall only be liable for the payment up and until the new LESSEE takes over the contract.
- 4.3 The cost involved in obtaining a new lessee as mentioned in 4.2 shall be for the account of the lease.

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- 4.4 The party, who terminates the contract, shall also be liable for the payment of all the costs as mentioned in paragraph 4.2 of this contract, irrespective if it is the LESSEE who terminates the contract.
- 4.5 The LESSEE shall have the right to renew this lease for a further period of 12 (TWELVE) months upon the terms and subject to the conditions set out below. All terms of this lease shall continue to apply during the renewal period.
- 4.6 Should the LESSEE decide to exercise this option, he must inform the LESSOR of his intention to extend the period, in writing, at least 3 (THREE) calendar months before the expiry of the lease period. If the LESSEE fails to exercise this option within the aforementioned period, the option will lapse.
- 4.7 If the LESSEE remains on the PROPERTY with the explicit or implicit permission of the LESSOR, the parties, in the absence of a further written lease agreement, are considered to have entered into a periodical lease subject to the clauses included in this agreement, except that any of the parties must give written notice of at least **2 (TWO) calendar months** of his intention to end the lease period.
- 4.8 The LESSEE must by all times gives **2 (TWO) calendar months'** notice after the fixed term if they want to terminate the lease agreement and vacate the property.
- 4.9 It is an explicit condition of this contract that the notice referred to in 4.7 If the LESSEE remains on the PROPERTY with the explicit or implicit permission of the LESSOR, the parties, in the absence of a further written lease agreement, are considered to have entered into a periodical lease subject to the clauses included in this agreement, except that any of the parties must give written notice of at least 2 (TWO) calendar months of his intention to end the lease period. May not be given in the month of NOVEMBER of any year

5. RENTAL

- 5.1 From **01 OCTOBER 2025** until **30 SEPTEMBER 2026** the rental will amount to **R6 800.00 (SIX THOUSAND EIGHT HUNDRED RAND)** per month subject to the condition that the rentals will be increased by 10% (TEN PERCENT) annually determined on a compound basis on the first day of **OCTOBER** every year.
- 5.2 The rental will be payable in advance on a monthly basis on the first day of every month. All rental monies will be paid by debit order. The LESSEE will not be entitled to subtract any amount from the rental amount.

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5.3 Debit order authority:

5.3.1 The LESSEE hereby gives permission to Properlet to debit the following bank account on a monthly basis to pay the rental due on the contract.

5.3.2 If the rental increases the LESSEE also authorises the increased rental to be debited from the mentioned account.

5.3.3 The account against which the debit order must be set in is:

Account holder :
Bank :
Account number :
Branch :
Branch code :
Type of account :

5.3.4 If the account referred to in 5.3.3 the account against which the debit order must be set in is changes: the LESSEE authorises Properlet to debit any account of the LESSEE.

5.3.5 If the LESSEE makes any late payments as referred to in 5.2 where payments are received after the first of the month an admin fee of R600.00 is levied with regards to the handling of the late payment, or if the LESSEE is accountable for the payment of Interest as referred to in 5.6 if any rental monies are not promptly paid on the expiry date thereof, the LESSEE is liable for the payment of interest on arrears rental monies determined from the date on which it became payable to the date of the payment thereof. Interests will be imposed at 24% (TWENTY-FOUR PERCENT). The LESSEE authorises Properlet to debit the additional amounts with the following month's rental.

5.3.6 If the LESSEE did not pay the rent on time as per lease agreement, and the LESSEE need to make arrangements to pay the outstanding amount, a fee of R100.00 is payable to make an arrangement on the payment. The arrangement form must be sent back to Properlet within 24 hours. If the tenant fails to send it back within 24 hours, a fee of R600.00 is payable for the arrangement letter.

5.3.7 The LESSEE hereby takes note that the debit is done by means of a computer program called ACB (Magnetic Tape Service) and understands that the details of the transaction appear on the LESSEE'S bank statement.

5.3.8 The LESSEE hereby gives authority to pay a debit order fee of R 20.00 per month.

5.3.9 The LESSEE guarantees that he/she has the necessary authority to bind the account referred to in 5.3.3 the account against which the debit order must be set in is: to this debit order.

5.3.10 This debit order is valid for as long as the LESSEE owes any moneys to the LESSOR or Properlet.

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5.3.11 If any payments are to be made on any other manner as per debit order, it must be paid into the following account:

Bank	:	ABSA
Branch	:	BLOEMFONTEIN
Account Name	:	Properlet
Account number	:	4080623565
Branch Code	:	632005
Account type	:	Current
Reference	:	ASA NO (4 digits no will be provided)

5.3.1.2 If cash is paid into this account a cash deposit fee of 2% of the gross rental amount must be paid additional to the amount paid in. This amount must be paid in together with the payment. If it is not paid, it will be deducted from the deposit upon termination of the contract.

5.3.1.3 Rental is payable in South African Rand before or upon the expire date thereof

5.3.1.4 The Parties agree that upon signing of this contract the following costs are payable:

The Monthly Rental	:R6 800.00
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TOTAL	:R6 800.00
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5.4 The LESSOR may in his exclusive discretion allocate any amounts received from or for the LESSEE to:

5.4.1 Arrears or running rental amounts,

5.4.2 Costs,

5.4.3 Interest, or

5.4.4 Any other cause of debt on the strength of which moneys may be owed to the LESSOR by the LESSEE, notwithstanding any allocation that the LESSEE may purpose to make

5.5 **IT IS AN EXPLICIT CONDITION OF THIS CONTRACT THAT THE LAST MONTH'S RENTAL MAY NOT BE PAID BY USE OF THE DEPOSIT REFERED TO IN 7 SECURITY.**

5.6 If any rental monies are not promptly paid on the expiry date thereof, the LESSEE is liable for the payment of interest on arrears rental monies determined from the date on which it became payable to the date of the payment thereof. Interest will be imposed at 24% (TWENTY-FOUR PERCENT).

5.6.1 Where payments are received after the first of the month an admin fee of **R 600.00** is levied with regards to the handling of the late payment.

5.7 The LESSOR shall furnish the LESSEE with a written receipt for all payments received from the LESSEE by the LESSOR. The receipt must indicate the following:

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5.7.1 The street address of the PROPERTY

5.7.2 The nature of the payment (e.g. deposit, rental, etc.)

5.7.3 The period for which the payment is made

5.7.4 The date on which payment is made

5.8 The LESSOR is liable for the payment of an administration fee of 5.75%(VAT INCLUDED) of the gross rental income towards Properlet. The LESSOR is liable for the payment of the fee for the full term of the contract, and for the extended period. The fee is payable for the full term of the contract with a minimum of 12 (TWELVE MONTHS). The fee is payable as a lump sum in advance, the agent will however deduct the fee monthly from the rental income. Should the property be sold, or removed under the administration of the agent, for whatever reason, the full amount of the outstanding fee will be levied, and if no funds are available debited from the bank account of the LESSOR.

6. TAXES AND LEVIES

6.1 The LESSOR shall pay all municipal taxes payable in respect of the PROPERTY.

6.2 The LESSEE is liable for the payment of all municipal levies in respect of the consumption of water and electricity as well as the costs of rubbish removal and other services which the municipality may render. If the municipality may require any deposit for the rendering of the aforementioned services in respect of PROPERTY, the LESSEE will pay such deposit.

6.3 If the local municipality or authority for whichever reason requires the LESSOR to pay the costs pertaining to the abovementioned services, the LESSOR after paying such costs, will be entitled to recover such costs together with interest on the amount determined at 24% (TWENTY-FOUR PERCENT) per annum on a compound basis.

6.4 If:

6.4.1 The municipal taxes, levies or monies payable by the LESSOR in respect of the PROPERTY are increased at any time during the existence of this contract, or

6.4.2 A new levy or tax which was not payable at the time of the signing of this agreement is levied by the authorities in respect of the PROPERTY or the leasing thereof;

Then the LESSOR shall be entitled to recover such an increase or new tax from the LESSEE with effect of the date on which the LESSOR becomes liable for the payment of such an increase or new tax.

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7. SECURITY

- 7.1 The LESSEE undertakes to pay an amount of **R6 800.00 (SIX THOUSAND EIGHT HUNDRED RAND)** to the LESSOR on the date of closing of this contract as security for the proper fulfilment of his obligations in terms of the clauses of this contract.
- 7.2 The deposit intended in The LESSEE undertakes to pay an amount of **R6 800.00 (SIX THOUSAND EIGHT HUNDRED RAND)** to the LESSOR on the date of closing of this contract as security for proper fulfilment of his obligations in terms of the clauses of this contract. Will be supplemented on the first day of **OCTOBER** each year so that it will always be equal to one month's rental.
- 7.3 The LESSOR shall be entitled in his absolute discretion to apply the amount of **R6 800.00 (SIX THOUSAND EIGHT HUNDRED RAND)** to meet the obligations of the LESSEE in terms of this contract, including the payment of the reasonable costs of the repairing of damages to the PROPERTY for which the LESSEE may be liable as well as for the costs of the replacement of lost keys. If any part of the aforementioned amount is applied in such a manner by the LESSOR, the LESSEE will be compelled to pay a further amount to the LESSOR so that the amount available to the LESSOR shall never be less than the amount of **R6 800.00 (EIGHT THOUSAND SIX HUNDRED RAND)**.
- 7.4 The AGENT of LESSOR is obliged
- 7.4.1 To invest the deposit intended in 7.1 in an interest-bearing account with a financial institution of his choice.
- 7.5 If at the expiry of the lease period no amounts are owing to the LESSOR pursuant the lease agreement, the deposit shall be paid back to the LESSEE within 30 (THIRTY) days.
- 7.6 Should any amounts be due and owing by the LESSEE to the LESSOR, the balance of the deposit, if any, must be paid to the LESSEE by the LESSOR not later than 30 (THIRTY) days after the LESSEE has evacuated the PROPERTY.
- 7.7 Receipts, which indicate the costs that were incurred by the LESSOR in respect of repair costs, must be made available to the LESSEE for inspection as proof of the costs incurred by the LESSOR.
- 7.8 Irrespective of the conditions stipulated in 7.5 if at the expiry of the lease period no amounts are owing to the LESSOR pursuant the lease agreement, the deposit shall be paid back to the LESSEE within 30 (THIRTY) days. And 7.6 should any amounts be due and owing by the LESSEE to the LESSOR, the balance of the deposit, if any must be paid to the LESSEE by the LESSOR not later than 30 (THIRTY) days after the LESSEE has evacuated the PROPERTY. No part of the deposit will be repaid until the LESSEE has provided written proof that his full account for the water and electricity on the property has been paid in full.

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- 7.9 The LESSEE shall pay an administration fee of R500.00 to Properlet for the finalization and pay out of the deposit.
- 7.10 In terms of the provisions of Section 5 (4) of the ACT, the parties may not renounce the provisions of 7.4 the AGENT of LESSOR is obliged, 7.5 If at the expiry of the lease period no amounts are owing to the LESSOR pursuant the lease agreement, the deposit shall be paid back to the LESSEE within 30 (THIRTY) days. 7.6 Should any amounts be due and owing by the LESSEE to the LESSOR, the balance of the deposit, if any, must be paid to the LESSEE by the LESSOR not later than 30 (THIRTY) days after the LESSEE has evacuated the PROPERTY And 7.7 Receipts, which indicate the costs that were incurred by the LESSOR in respect of repair costs, must be made available to the LESSEE for inspection as proof of the costs incurred by the LESSOR.
- 7.11 If the LESSEE vacates the property within the term of this agreement, without written permission from the LESSOR, the tenant will not be refunded with the deposit, and will forfeit it.

8. DEFECTS

- 8.1 The LESSEE and LESSOR shall, before the LESSEE takes occupation of the PROPERTY, inspect the PROPERTY and together establish the existence or non-existence of any defects or damages with view to the LESSOR'S responsibility for the repair of any defects or damages or with view to the registration of any damages pursuant to the provisions of All defects identified during the aforementioned inspection shall be listed and signed by both the LESSOR and the LESSEE and be attached to this agreement as an annexure.
- 8.2 Should any defects or damages to the property be identified during such an inspection, no obligation shall rest on the LESSOR to repair such defects or damages.
- 8.3 All defects identified during the aforementioned inspection shall be listed and signed by both the LESSOR and the LESSEE and be attached to this agreement as an annexure.
- 8.4 On expiry of the lease the LESSOR and the LESSEE shall arrange for a joint inspection of the property at a time convenient for both parties within a period of 3 (THREE) days after the expiry of the lease period to establish whether any damages to the premises occurred during the LESSEE'S occupation thereof.
- 8.5 If the LESSEE neglects to respond to the LESSOR'S request for an inspection as intended in On expiry of the lease the LESSOR and the LESSEE shall arrange for a joint inspection of the property at a time convenient for both parties within a period of 3 (THREE) days after the expiry of the lease period to establish whether any damages to the premises occurred during the LESSEE'S occupation thereof. The LESSOR shall inspect the PROPERTY within 7 (SEVEN) days after

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the expiry of the lease period in order to ascertain whether any damages or losses had occurred during the duration of the lease.

- 8.6 Under the circumstances foreseen in 8.5 If the LESSEE neglects to respond to the LESSOR's request for an inspection as intended in 8.1 on expiry of the lease the LESSOR and the LESSEE shall arrange for a joint inspection of the property at time convenient for both parties within a period of 3 (THREE) days after the expiry of the lease period establish whether any damages to the premises occurred during the LESSEE'S occupation thereof. The LESSOR shall inspect the PROPERTY within 7 (SEVEN) days after the expiry of the lease period in order to ascertain whether any damages or losses had occurred during the duration of the lease. The LESSOR is entitled to, without prejudice to any of his rights, deduct the reasonable costs of the repair of damages to the dwelling and his costs of replacing lost keys from the LESSEE'S deposit, and obliged to pay the balance of the deposit to the LESSEE not later than 30 (THIRTY) days after the expiry of the lease period.
- 8.7 If the LESSEE vacates the PROPERTY before expiry of the lease period and without notice to the LESSOR, the lease period is considered to expire on the date on which the LESSOR determined that the LESSEE has vacated the PROPERTY.
- 8.8 In terms of the provisions of Section 5 (4) of the ACT the parties may not renounce the any of the provisions included in this paragraph.

9. CONDITIONS OF TITLE AND OTHER CONDITIONS

- 9.1 The PROPERTY is leased subject to the provisions of the conditions title of the PROPERTY of the town development scheme and regulations of the local authority, and of any statutes, ordinances or regulations of other authorities, which may be applicable.
- 9.2 If any house rules are applicable on the dwelling and such house rules are not contained in this agreement, it must be obtained from the Body Corporate / Trustees. It is the sole responsibility of the LESSEE to obtain the aforementioned house rules.
- 9.3 If the house rules are changed by the Body Corporate / Trustees, or the LESSOR the LESSEE must adhere to these rules.

10. STATE AND MAINTENANCE OF THE PROPERTY

- 10.1 The LESSEE leases the premises in the state that it stands and the LESSOR has no responsibility to improve or paint or repair the premises.
- 10.2 The LESSEE:
- 10.2.1 Shall maintain the whole PROPERTY and all improvements, fittings, equipment, draining and sanitary facilities in the same good and neat state (reasonable wear and tear taken into account) as it was at the beginning of the lease period, at his own cost;

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- 10.2.2 Shall at all times maintain the PROPERTY in a clean and neat state;
- 10.2.3 May not do anything or allow anything to be done which causes damage to the PROPERTY or the improvements, fittings and attachments;
- 10.2.3.1 May not damage the walls by using nails or screws;
- 10.3 Is compelled to repair at own cost any damage to the property, caused by furniture, objects or vehicles, which was brought onto or removed from the property.
- 10.4 May not do any repair work, or have any repair work done to vehicles, motorcycles, or any other motorised object on the property.
- 10.5 Must ensure that the drain and water pipes do not become blocked and must repair or have such blockages repaired at his own cost;
- 10.6 The LESSEE must during the term of this contract, at own cost:
- 10.6.1 Keep the inside and outside of the PROPERTY with specific regards to the doors and windows in a good and hygienic condition
- 10.6.2 Keep all locks, doorknobs and other attachments and all the electrical and other installations, inside and outside the property in a good and proper condition, with the understanding that any serious defect to the electrical, water, and sanitation installations will be repaired by the LESSOR. This will however not be done if the damage or defect was caused by negligence on the side of the LESSEE.
- 10.7 May not change or overload the electrical installations;
- 10.8 May not install air-conditioning units or ventilation equipment in the dwelling without first obtaining the written permission of the LESSOR;
- 10.9 Is responsible for replacing all globes, fluorescent lights, staffers and transformers at his own cost;
- 10.10 May not store or use any flammable material on the PROPERTY or do anything which may adversely affect the insurance policy under which the buildings on the PROPERTY is insured or which will increase the premium paid on such insurance;
- 10.11 May not keep pets in the dwelling without first obtaining the written consent of the LESSOR; and even with the written consent of the LESSOR subject to the rules of the property
- 10.12 Must only use the PROPERTY and the improvement thereon for the accommodation of his family, bona fide visitors and servants and for no other purpose;
- 10.13 Must maintain the garden, lawns, trees, shrubs and flowers in conformity with reasonable gardening practices. Should he not do the LESSOR will be entitled to request a garden service organisation to do the necessary work, the cost of which will be for the account of the LESSEE.

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- 10.14 Must at his own cost keep the area around the property neat and clean and free of rubbish and dirt
- 10.15 May not without the written consent of the LESSOR, remove, cut or chop down any tree, shrub or plant, normal trimming excluded.
- 10.16 Must subject himself, his family, any other occupant, servant, or visitor to the conditions of the contract and to the rules as referred to in 9 CONDITIONS OF TITLE AND OTHER CONDITIONS of this contract. Any breach of the contract done by any of the mentioned parties will be considered to have been done by the LESSEE.
- 10.17 May not have or arrange any actions or sale to be done on the property.
- 10.18 Must upon termination of the rental agreement must furnish the LESSOR with an Invoice from an acknowledged carpet cleaning company to prove that the carpets have been cleaned.
- 10.19 The LESSEE may not without the written consent of the LESSOR, which consent or not be withheld unreasonably, do the following:
- 10.19.1 Allow the premises to be unoccupied for a period longer than six weeks; or
- 10.19.2 Vacate the premises before the end of the term of the contract.
- 10.20 If any of the electrical, sewerage or sanitary equipment should become defect during the lease period due to normal wear and tear, the LESSOR will be compelled to repair such defect at his own cost as soon as is reasonably possible.
- 10.21 Pest control of property
- 10.21.1 If upon occupation, the property is infested with any pests, it is the responsibility of the LESSEE to report this to the LESSOR. Should the LESSEE neglected to do this within a period of seven days, then he/she will be liable for the termination of the pests.
- 10.21.2 If on the termination of the contract and upon vacation of the property by the LESSEE, the property is infested with any pests, and the LESSEE cannot sufficiently explain the infestation then he/she will be liable for the termination of the pests.
- 10.21.3 The LESSOR is not responsible for the termination of roaches. The LESSEE will use one of the accepted methods of terminating roaches.
- 10.21.4 The LESSOR does not get rid of rats or mice, and it is the responsibility of the LESSEE to use one of the accepted methods or removing or killing them.
- 10.22 Should the LESSEE fail or neglect to fulfil his obligations in terms of paragraph 10.2 The LESSEE: and 10.21 Pest control of property (including sub paragraphs), the LESSOR shall be entitled to (without prejudice to any other rights which he may have against the LESSEE to have such repairs or other work done as he may deem necessary under the circumstances and in his own absolute

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discretion and may use the deposit intended in paragraph 7 **SECURITY** for payment of the costs involved and to recover the balance, if any, from the LESSEE.

11. IMPROVEMENTS AND ATTACHMENTS

- 11.1 The LESSEE is not entitled to make any changes and/or additions to the PROPERTY or the fittings and attachments without first obtaining the written consent of the LESSOR. The LESSOR will not unreasonably withhold such consent, but will be entitled to lay down such conditions, as he may deem necessary in his own discretion.
- 11.2 Any changes or additions that are permanent attachments become the property of the LESSOR and the LESSEE will not be entitled to remove such attachments or to claim the costs incurred from the LESSOR.
- 11.3 Notwithstanding the provisions of paragraph 11.2 any changes or additions that are permanent attachments become the property of the LESSOR and the LESSEE will not be entitled to remove such attachments or to claim the costs incurred from the LESSOR hereof the LESSOR may on the expiry of this lease agreement demand that the LESSEE remove any or all of the attachments and repair the PROPERTY to the same state as it was in before the changes or additions were made.
- 11.4 If the LESSEE fails to comply with a request from the LESSOR in terms of the provisions of paragraph 11.3 Notwithstanding the provisions of paragraph 11.2 any changes or additions that are permanent attachments become the property of the LESSOR and the LESSEE will not be entitled to remove such attachments or to claim the costs incurred from the LESSOR hereof the LESSOR may on the expiry of this lease agreement demand that the LESSEE remove any or all of the attachments and repairs to the PROPERTY to the same as it was before the changes or additions were made, the LESSOR will be entitled to have the changes or additions removed, the PROPERTY repaired and to claim the costs involved from the LESSEE and to subtract this amount from any amount due to the LESSEE from the LESSOR.

12. DAMAGES

- 12.1 The LESSOR is not accountable for any damages which the LESSEE may suffer due to rain, wind, hail, lightning, fire, storms or leakages or due to riots, strikes, breaks in water and electrical supplies or sanitary or rubbish removal services or acts by enemies of the State or due to any other cause.
- 12.2 The LESSEE hereby indemnifies the LESSOR of any claims which may be instituted against him for the compensation of damages which anyone may suffer due to an act of or neglect by the LESSEE, his family members, his visitors, servants or agents.

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13. LESSOR'S RIGHT OF ENTRY AND INSPECTION

- 13.1 The LESSOR or his representatives, agents, servants and contractors shall at all reasonable times have the right to enter the property for the purpose of:
- 13.1.1 A three monthly inspection or investigation as to whether all the provisions of this agreement are being adhered to;
- 13.1.2 Making such repairs and changes as is considered necessary for the security, preservation and maintenance of the improvements with the understanding that such repairs must be done as quickly as possible and with as little invasion on the private ownership of the LESSEE.
- 13.2 If repairs are made the LESSEE is not entitled to a reduction in the rental.
- 13.3 The LESSOR shall exercise his rights in terms of 13.1 The LESSOR or his representatives, agents, servants and contractors shall at all reasonable times have the right to enter the property for the purpose of and 13.2 If repairs are made the LESSEE is not entitled to a reduction in the rental. In a reasonable fashion after reasonable notice to the LESSEE
- 13.4 The LESSEE'S rights regarding the LESSOR include:
- 13.4.1 That the LESSEE'S person or the dwelling on the PROPERTY may not be searched;
- 13.4.2 That the LESSEE'S property may not be searched;
- 13.4.3 That the LESSEE'S property will not be seized or attached except in terms of a court order; or
- 13.4.4 That the LESSEE'S privacy of communication shall not be infringed.

14. DAMAGE OR DESTRUCTION

If the improvements on the PROPERTY are totally or partly destroyed by or damaged by fire, storm or any other cause, the LESSOR will in his complete discretion be entitled to immediately cancel this agreement, in which case the LESSEE will only be entitled to claim a pro rata part of any prepaid rental, or the LESSOR will be entitled to repair the PROPERTY, in which case the LESSEE will be entitled to a reasonable decrease in rental.

15. LETTING OUT OR SELLING OF THE PROPERTY

- 15.1 The LESSOR shall be entitled to erect a notice on or outside the PROPERTY to indicate that the property is to let, within a period of 3 (THREE) months preceding the expiry of this lease agreement subject to paragraph 4 **LEASE PERIOD** the LESSOR shall also be entitled to show the PROPERTY to prospective lessees during the aforementioned period.
- 15.2 The LESSOR reserves the right to sell the PROPERTY and to erect a notice on the property for this purpose and to show the PROPERTY to prospective buyers.

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16. SUBLETTING AND NUMBER OF OCCUPANT ALLOWED

- 16.1 The LESSEE will not be entitled to sublet the PROPERTY or to cede his rights in terms of this contract or to allow any persons other than those mentioned in paragraph 10.12 Must only use the PROPERTY and the improvements thereon for the accommodation of his family, bona fide visitors and servants and for no other purpose, hereof to occupy the PROPERTY or any part thereof.
- 16.2 The maximum number of people who may at any time occupy the property is 4 (FOUR).

17. CONSENT TO JURISDICTION

The parties hereby consent to the jurisdiction of the Magistrates Court for the settlement of any dispute arising from this agreement as well as the cancellation or the interpretation thereof. Notwithstanding the foregoing the LESSOR shall be entitled to institute action against the LESSEE in the High Court.

18. BREACH OF CONTRACT

18.1 Should the LESSEE:

- 18.1.1 Default in the payment of any amount due under this lease upon the day it becomes due and payable, or:
- 18.1.2 Be in breach of any other of its terms in any other way, and fail to remedy such default or breach within 7 (SEVEN) days after receiving a written demand that it be remedied, or
- 18.1.3 Act in such a manner that the LESSOR can make the reasonable deduction that the LESSEE does not intend to or is not capable of keeping to the provisions of this agreement, or
- 18.1.4 Fails to occupy the property within a period of 3 (three) days from the occupation date; or
- 18.1.5 Attempts to or in fact reaches a compromise with his creditors, or
- 18.1.6 Gives notice of his intention to surrender his estate, or
- 18.1.7 His/her estate is sequestrated, or
- 18.1.8 Neglects to comply with a judgement given against him within 7 (SEVEN) days,
- Then the LESSOR will be entitled to immediately:
- 18.1.9 Cancel this lease agreement,
- 18.1.10 To evict the LESSOR and/or any other person or persons who occupy the PROPERTY on his behalf, or who may be on the PROPERTY, or to have such persons removed,
- 18.1.11 To himself take occupation of the PROPERTY,
- 18.1.12 To claim all arrear rentals,
- 18.1.13 To claim payment of any damage caused to the PROPERTY as well as damages due to the breach of contract on the part of the LESSEE, or alternatively

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18.1.14 To claim the full balance of rental due in terms of this agreement without prejudice to the LESSOR'S right to claim payment of any other amounts outstanding or compensation for damages caused to the PROPERTY or due to breach of contract on the part of the LESSEE.

18.2 If the LESSOR terminates this agreement and the LESSEE still occupies the PROPERTY pending a settlement of a dispute between the parties, then-

18.2.1 The LESSEE shall continue to timeously make instalments in terms of this agreement as if the agreement was never terminated, and

18.2.2 The LESSOR shall be entitled to receive such payment, and

18.2.3 The receipt of such payments shall not prejudice the LESSOR'S right to cancellation or any claim emanating from this agreement.

18.3 Should the LESSEE fail or neglect to meet his obligations timeously he shall also be responsible for payment, over and above any other obligations to the LESSOR of:

18.3.1 All legal costs and fees (determined on an attorney and client basis) incurred by the LESSOR due to the LESSEE'S neglect notwithstanding any legal action taken by the LESSOR.

18.3.2 Collection fees according to the guidelines set by the Law Society of the Free State.

19. FAILURE BY THE LESSOR

19.1 Should the LESSEE claim that the LESSOR is in default in complying with his duties in terms of this agreement, the LESSEE shall not take steps for the cancellation of this agreement unless the LESSOR is still in default of the lapse of a period of 30 (THIRTY) days from the date after receipt of a written notice from the LESSEE in which the alleged default is set out.

19.2 **The LESSEE is not entitled to withhold payment of the rental, or any part thereof**, due to alleged defects to the PROPERTY, improvements, or equipment installations for or on the grounds of the LESSOR'S alleged failure to make any repairs.

20. DOMICILIA CITANDI ET EXECUTANDI AND NOTICES

20.1 The parties choose as their Domicilium citandi et executandi for all purposes by virtue of this agreement, whether regarding the service of court documents, notices, documents or communication of whatever nature, the following addresses-

20.1.1 The LESSEE

6 SAN-BREPARK

JAN FISKAALSTREET

PELLISSIER

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TAKING THE BATTLE OUT OF
LETTING & SELLING
SINCE 2001

20.1.2 The LESSOR

PROPERLET
C/O MR HJA DE WAAL
17 VOLKSPELE DRIVE
PELLISSIER
BLOEMFONTEIN, 9301

- 20.2 From the date of occupation, the PROPERTY will become the domicilium citandi et executandi of the LESSEE.
- 20.3 The LESSOR may give notice to a change of his domicilium citandi et executandi to another physical address in the Republic of South Africa with the understanding that the change will only come into force on the 7th day after receipt of the notice.
- 20.4 Any notice or communication for the purposes of this contract will be:
- 20.4.2 In writing;
- 20.4.2 Be addressed to the other party at his chosen domicilium citandi et executandi;
- 20.4.3 And be sent by registered post or be delivered by hand.
- 20.4.4 Any notice from a party enclosed in a correctly addressed envelope and which-
- 20.4.4.1 Was sent by prepaid registered post to him/her at his/her domicilium citandi et executandi; or
- 20.4.4.2 Was delivered by hand to a responsible person during normal trading hours at his domicilium citandi et executandi,
- 20.4.4.3 Will be deemed to have been received in the case of
- 20.4.3 And be sent by registered post or be delivered by hand. on the 5th day of business after it was posted (unless the contrary can be proved) and in the case of paragraph 20.4.4.2 Was delivered by hand to a responsible person during normal trading hours at his domicilium citandi et executandi, on the day of delivery.
- 20.5 Notwithstanding anything to the contrary included herein, a written notice or communication received by a party is a valid notice or communication notwithstanding the fact that it was not sent or delivered to him at his chosen domicilium citandi et executandi.
- 20.6 Where a given number of days must be determined, the day of delivery must be included in the determination.

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21. MAINTENANCE OF SWIMMING POOL

If there is a swimming pool on the PROPERTY, the LESSEE shall maintain the swimming pool in good order at his own cost. Without prejudice to the general meaning of the foregoing the LESSEE undertakes to

- 21.1 Regularly (including winter months) administer such chemicals as may be prescribed by the LESSOR;
- 21.2 Regularly clean the swimming pool and to ensure that it is clear of leaves and other waste material;
- 21.3 Brush and vacuum the walls and floor of the swimming pool regularly; and
- 21.4 Ensure that the pool is algae free
- 21.5 The LESSOR does not take any responsibility for the LESSEE safety when using the swimming pool. The LESSEE uses the swimming pool at their own risk

22. AMENDMENTS, POSTPONEMENT, PRESENTATIONS AND GENERAL

- 22.1 NO agreement in conflict with the provisions of this agreement will be binding on the parties unless it has been reduced to writing and signed by both parties
- 22.2 If two or more persons sign this contract as LESSEE or LESSOR, both of the mentioned persons will be responsible for the duties under this contract in solidum.
- 22.3 NO postponement or concession that the LESSOR may grant the LESSEE regarding the meeting of his obligations in terms of this agreement will:
 - 22.3.1 Prejudice the LESSOR'S rights, or
 - 22.3.2 Be considered a cession of any of the LESSOR'S rights.
- 22.4 The LESSEE hereby acknowledges that-
 - 22.4.1 He was not influenced to enter into this agreement by the LESSOR or his agents; and
 - 22.4.2 No presentations were made to him or guarantees given to him that are not included in this agreement.
 - 22.4.3 That he has made himself aware that the property is suitable for the purposes for which it is rented; and
 - 22.4.4 That he will have no claim against the LESSOR or the agent should the property due to any reason whatsoever become unsuitable for the purpose for which it is rented; and
 - 22.4.5 The agent if he is authorised by the LESSOR, shall be able to perform all the duties and powers of the LESSOR; and

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22.4.6 The LESSEE carries the responsibility for all the property and assets that he/she brings upon to the premises, and the LESSOR is not responsible for any losses however they may occur to any of the LESSEE'S property.

23. COSTS

23.1 The LESSEE is responsible for the payment of:

23.1.1 All costs pertaining to the taking of instructions, the drawing up of this agreement and all visits, interviews and correspondence attached thereto. **Monthly Properlet admin fee of R50.00 (FIFTY RAND) will be payable by the LESSEE.**

23.1.2 Value added tax on the costs named in 23.1.1 all costs pertaining to the taking of instructions, the drawing up of this agreement and all visits, interviews and correspondence attached thereto.

23.1.3 Any actions taken by the LESSOR against the LESSEE which results from this contract, including the cost of tracing the LESSEE, collection commission, collections fees at the going rate and any other legal costs and fees.

23.2 The costs named in THE LESSEE are responsible for the payment of: are payable at the time of signing of this contract.

24. WAIVER OF RIGHTS BY THE LESSEE

24.1 The lease hereby confirms that he is well aware of his rights which is given to him in terms of the Security of Tenure Act, 1997 (Act No 62 of 1997) and also the Prevention of illegal eviction from and unlawful occupation of land Act, 1988 (Act No 19 of 1988), and also his possible rights created by the Court of Appeal Decision Cape Killarney Property Investments (Pty) Ltd versus Mahamba and Others (2002) (4) S.A., page 1222, and hereby waives unconditionally *in rem suam* any of his rights which is given to him terms of the above-mentioned.

24.2 The lease confirms herewith that in the instance where he is in breach of this contract, he will not fall back on the conditions of any of these acts and decisions, and he waves his rights in terms of these for the purpose of this contract.

25. DEATH OF THE LESSEE

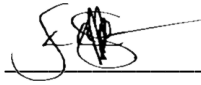
Should the LESSEE die within the term of this contract, the contract will terminate on the last day of the month in which the LESSOR is notified of the death of the LESSEE. Should the notice reach the LESSOR after the 13th of a month, it will be deemed to have been received on the first of the following month.

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26. LESSEE AND LESSOR SIGNATURES

SIGNED AT Bloemfontein ON THE 11 OF November 2025

LESSEE 1 SIGNATURE: _____



LM MANABA

LESSEE 2 SIGNAURE: _____



SIGNED AT BLOEMFONTEIN ON THE 11TH OF NOVEMBER 2025

LESSOR SIGNATURE: _____

HJA DE WAAL pp

THE HUBERT TRUST

Audit Trail

2025-11-11 10:36:20 SAST	Status marked as complete.	
2025-11-11 10:36:15 SAST	abrie@properlet.co.za (Abrie de Waal) completed signing document	41.24.178.118
2025-11-11 10:35:27 SAST	abrie@properlet.co.za (Abrie de Waal) accepted QuicklySign Terms and Conditions	41.24.178.118
2025-11-11 10:35:21 SAST	abrie@properlet.co.za (Abrie de Waal) opened document	41.24.178.118
2025-11-11 10:35:21 SAST	abrie@properlet.co.za (Abrie de Waal) entered correct pin	41.24.178.118
2025-11-11 10:35:00 SAST	Email has been received by abrie@properlet.co.za mail server	149.72.149.195
2025-11-11 10:34:47 SAST	OTP sent to: abrie@properlet.co.za (Abrie de Waal)	
2025-11-11 10:34:39 SAST	abrie@properlet.co.za (Abrie de Waal) clicked document link	41.24.178.118
2025-11-11 10:02:35 SAST	Email has been received by abrie@properlet.co.za mail server	149.72.251.1
2025-11-11 10:01:38 SAST	Signature request sent to: abrie@properlet.co.za (Abrie de Waal)	
2025-11-11 10:01:33 SAST	lechesam@me.com (LECHESA) completed signing document	105.245.28.84
2025-11-11 08:59:33 SAST	lechesam@me.com (LECHESA) accepted QuicklySign Terms and Conditions	105.245.28.84
2025-11-11 08:59:27 SAST	lechesam@me.com (LECHESA) opened document	105.245.28.84
2025-11-11 08:59:27 SAST	lechesam@me.com (LECHESA) entered correct pin	105.245.28.84
2025-11-11 08:59:04 SAST	Email has been received by lechesam@me.com mail server	167.89.84.21
2025-11-11 08:59:01 SAST	OTP sent to: lechesam@me.com (LECHESA)	
2025-11-11 08:58:57 SAST	lechesam@me.com (LECHESA) clicked document link	105.245.28.84
2025-11-11 08:28:26 SAST	Email has been received by lechesam@me.com mail server	149.72.251.1
2025-11-11 08:28:21 SAST	Signature request sent to: lechesam@me.com (LECHESA)	
2025-11-11 08:28:16 SAST	Properlet changed the status to:awaiting_signatures	41.24.178.118
2025-11-11 08:25:35 SAST	admin@properlet.co.za (Properlet) uploaded document	41.24.178.118

Signers

LECHESA

Email: lechesam@me.com

Role: signer-1

Mobile Number: None

User Identification: email_mobile



Date completed: 2025-11-11 09:59:16 SAST

Abrie de Waal

Email: abrie@properlet.co.za

Role: signer-2

Mobile Number: None

User Identification: email_mobile



Date completed: 2025-11-11 10:36:00 SAST

Supporting documentation

Supporting documents that were uploaded, as part of the signing process, can be found on the document page online.

Online verification

This document can be verified online here

https://financial.quicklysign.com/verify_document/ZydUqBpkpS0PJ019a719750c7_Jo5yYkXre6hOZx